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TENTATIVE RULING

Defendant Global Integrity Realty Corporation's Demurrer to Complaint is SUSTAINED with thirty (30) days leave to amend as to the second, third, fifth, sixth, and seventh causes of action and SUSTAINED without leave to amend as to the fourth cause of action.

Defendant Global Integrity Realty Corporation's Motion to Strike Portions of Complaint is GRANTED with thirty (30) days leave to amend as to the claims and prayer for punitive damages.

Plaintiffs Michael Lewis, Shannon Cummings, Alexander Cummings, Austin Cummings, Cecilia Sabillon, and Serafin Hill Hernandez may amend their complaint only as authorized by the Court's order and may not amend the complaint to add a new party or cause of action without having obtained permission to do so. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.)

Defendant Global Integrity Realty Corporation to give notice.

REASONING

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967), but the Court does not "assume the truth of contentions, deductions, or conclusions of fact or law" (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 125).

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Demurrer

Second Cause of Action: Negligence

To state a claim for negligence, Plaintiffs Michael Lewis, Shannon Cummings, Alexander Cummings, Austin Cummings, Cecilia Sabillon, and Serafin Hill Hernandez (“Plaintiffs”) must allege the elements of (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.) “The negligence per se doctrine, as codified in Evidence Code section 669, creates a presumption of negligence if four elements are established: (1) the defendant violated a statute, ordinance, or regulation of a public entity; (2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence of the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted.” (*Spates v. Dameron Hospital Association* (2003) 114 Cal.App.4th 208, 218, quotation marks omitted.) “The doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.” (*Johnson v. Honeywell International Inc.* (2009) 179 Cal.App.4th 549, 555, quotation marks and brackets omitted.)

In the second cause of action, Plaintiffs allege that Defendant was required by law to prevent harm to Plaintiffs, which they breached by violating the ICRAA’s notice and checkbox requirements. (Compl. ¶¶ 41-44.) Plaintiffs allege harm in the form of “emotional distress, the invasion of privacy rights, and the denial of reports that Plaintiffs had a statutory right to obtain, which harmed Plaintiffs rights in those property interests.” (Compl. ¶ 46.)

Put simply, the facts alleged do not support a finding of damages and harm by Plaintiffs. The Court cannot conceive of, because Plaintiffs fail to allege, how Plaintiffs would have suffered cognizable emotional distress or invasion of privacy rights in a manner that caused monetary damages when the alleged conduct is mere failure to provide reports to Plaintiffs or failure to notify Plaintiffs that such reports were being obtained. For that reason, Defendant’s demurrer to the second cause of action is SUSTAINED with thirty (30) days leave to amend.

Third Cause of Action: Violations of Unfair Competition (“UCL”) – Cal. Bus. & Profs. Code §§ 17200, et seq.

To set forth a claim for a violation of Business and Professions Code section 17200, Plaintiffs must establish Defendant was engaged in an “unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising” and certain specific acts. (Bus. & Prof. Code, § 17200.) A cause of action for unfair competition “is not an all-purpose substitute for a tort or contract action.” (*Cortez v. Purolator Air Filtration Products Co.* (2000) 23 Cal.4th 163, 173.)

In the third cause of action, Plaintiffs allege that they paid a \$30 application screening fee to cover the costs of reports from investigative reporting agencies, but Defendant refused to provide a copy of the report to Plaintiffs. (Compl. ¶¶ 48-49.) Plaintiffs do not allege that the fee being charged is itself the violation; rather, it is the failure to provide a copy of the report, and it remains that Plaintiffs have failed to allege cognizable damages from this violation. Accordingly, Defendant’s demurrer to the third cause of action is SUSTAINED with thirty (30) days leave to amend.

Fourth Cause of Action: Violations of the Consumer Legal Remedies Act ("CLRA") – Cal. Civ Code §§ 1750, et seq.

Plaintiffs state in their opposition to Defendant's demurrer that they "do not oppose the demurrer to this cause of action, as it is not applicable to transactions involving real property." (Opp'n, p. 6, ll. 9-10.) While Plaintiffs provide argument stating that this claim has been sufficiently pled, the Court understands this concession as seeking to voluntarily dismiss this claim. Thus, Defendant's demurrer to the fourth cause of action is SUSTAINED without leave to amend.

Fifth Cause of Action: Invasion of Privacy

"An actionable claim [for invasion of privacy] requires three essential elements: (1) the claimant must possess a legally protected privacy interest; (2) the claimant's expectation of privacy must be objectively reasonable; and (3) the invasion of privacy complained of must be serious in both its nature and scope." (County of Los Angeles v. Los Angeles County Employee Relations Commission (2013) 56 Cal.4th 905, 926, citations omitted.) "An otherwise actionable invasion of privacy may be legally justified if it substantively furthers one or more legitimate competing interests. Conversely, the invasion may be unjustified if the claimant can point to 'feasible and effective alternatives' with 'a lesser impact on privacy interests.'" (Ibid., citation omitted.)

In the fifth cause of action, Plaintiffs allege that they had a reasonable expectation that Defendant would not solicit information concerning their character unless Defendant complied with legal requirements, and obtaining reports in violation of law invaded Plaintiffs privacy and deprived them of the ability to scrutinize the reports. (Compl. ¶¶ 68-70.) It is not clear why Plaintiffs would have had such a reasonable expectation of privacy when they voluntarily applied to rent at the units, and while Defendant may have violated legal requirements, the trier of fact could not conclude that Plaintiffs' privacy was violated in a serious manner under these facts. Accordingly, Defendant's demurrer to the fifth cause of action is SUSTAINED with thirty (30) days leave to amend.

Sixth Cause of Action: False Advertisement

The False Advertising Law prohibits advertising that contains "any statement . . . which is untrue or misleading, and which is known, or . . . should be known, to be untrue or misleading . . ." Bus. & Prof. Code §17500.

In the sixth cause of action, Plaintiffs allege that Defendant represented there was an opportunity for applicants to obtain a copy of investigative consumer reports procured with application processes, but Defendant did not provide such reports. (Compl. ¶¶ 75-76.) The nature of the purported advertisement is unclear, as Plaintiffs refer only generally to "application materials and related communications" (Compl. ¶ 75), and it is unclear how those statements would have induced Plaintiffs to apply, as they allege (Compl. ¶ 77). Thus, Defendant's demurrer to the sixth cause of action is SUSTAINED with thirty (30) days leave to amend.

Seventh Cause of Action: Fraud

"The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of "liberal construction" of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) To properly allege fraud against a corporation, the plaintiffs must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

In the seventh cause of action, Plaintiffs refer only generally to "false representations" that were made about obtaining a copy of investigative reports (Compl. ¶ 81) and their reliance on the same (Compl. ¶ 84). This does not meet the heightened specificity requirement for a fraud claim, particularly one against a corporate defendant, as Plaintiffs do not allege who said

what, what specifically was said, how it was communicated, and when it was communicated. For that reason, Defendant's demurrer to the seventh cause of action is SUSTAINED with thirty (30) days leave to amend.

Motion to Strike

Punitive damages may be recovered upon a proper showing of malice, fraud, or oppression. (Civ. Code, § 3294, subd. (a).) "Malice" is defined as conduct intended to cause injury to a person or despicable conduct carried on with a willful and conscious disregard for the rights or safety of others. (Turman v. Turning Point of Cent. Cal., Inc. (2010) 191 Cal.App.4th 53, 63.) "Oppression" means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person's rights. (Ibid.) "Fraud" is an intentional misrepresentation, deceit, or concealment of a material fact known by defendant, with intent to deprive a person of property, rights or otherwise cause injury. (Ibid.) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud, or malice. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.)

Plaintiffs seek punitive damages, but they fail to allege any malice, oppression, or fraud by Defendant. Given that it appears Plaintiffs seek to hold Defendant liable for the acts of specific individuals, such as employees, who made certain representations, corporate employers like Defendant may be liable for punitive damages only where the acts supporting the award were performed by or with knowledge of or with ratification by corporate officials. (Civ. Code, § 3294, subd. (b).) Plaintiffs have alleged no facts that would allow the trier of fact to conclude that corporate officials were aware of the likelihood of injury to Plaintiffs, particularly because the nature of the purported injury is unclear, or that those officials ratified the wrongful conduct which ultimately caused harm to Plaintiffs. Upon amending the complaint, Plaintiffs must allege specific facts in this regard to support an award for punitive damages, and conclusory statements will not suffice. Accordingly, Defendant's motion to strike is GRANTED with thirty (30) days leave to amend as to Plaintiffs' claims and prayer for punitive damages.